

IN RE ALLEN

Case Number: 24PB-0032715

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Lakota Allen's claims from an automobile collision on June 5, 2023. The minor's mother, Brandy Lee Manso, was appointed as the minor's Guadian ad Litem on November 27, 2024. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition and Declaration of Janine A. Mitchell contain the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will ask counsel to voir dire Petitioner regarding the following: the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of deposit. **An appearance by the Petitioner and Petitioner's counsel of record is necessary on today's calendar.**

MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION CALIFORNIA STATE AUTOMOBILE ASSOCIATION

Case Number: 24CV-0206073

Tentative Ruling on Motion to Request an Immediate Hearing Before a Judge: Plaintiff Stacy Massett filed this motion on demand and appears to be seeking an immediate hearing to address Plaintiff's perceived misconduct by court clerks. Specifically, Plaintiff argues that the clerks have rejected Plaintiff's Requests for Entry of Default. The motion does comply with CRC 3.1112 and is therefore defective. The motion is **DENIED** without prejudice for being in an improper format and being procedurally defective. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

The Court has reviewed the filings in this matter and concurs that there is no valid Proof of Service of Summons on file for either named Defendant. While the Court cannot give legal advice, the Court can provide general law and will do so in this case.

A Proof of Service of Summons (Judicial Council Form POS-010) must be complete and the name of the Defendant being served must match the name listed in the Complaint. The Defendants in this matter are listed as "California State Automobile Association (CSAA)" and "American Automobile Association (AAA)." When serving an entity (as opposed to an individual), Item 3.a. is where the Defendant is listed and 3.b. is where the person served on behalf of the entity is listed. It appears that the named Defendants may be corporations. If so, CCP § 416.10 would apply.

A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

- (a) To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable).
- (b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.
- (c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in

subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision.

CCP § 416.10

An assistant manager of a branch office in Redding, California is likely not authorized to accept service of a Summons.

It is Plaintiff's responsibility to properly serve the matter on all named Defendants and file a valid Proof of Service of Summons within 60 days of the filing of the Complaint. CRC 3.110(b). "If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed." CRC 3.110(f). Plaintiff has not complied with CRC 3.110(b). However, as it appears that Plaintiff is making good faith efforts to effectuate service, the Court is not inclined to issue an Order to Show Cause Re: Monetary Sanctions at this time.

The Court notes that Specially Appearing Defendant CSAA Insurance Exchange has filed a Motion to Quash Service of Summons which is noticed for March 3, 2025 at 8:30 a.m. The matter is set for hearing on **Monday, March 3, 2025 at 9:00 a.m. in Department 63** for review regarding status of service and responsive pleadings. Plaintiff is ordered to comply with CRC 3.110.

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 16, 2024, to Plaintiffs Dean Piercy and Rusty Piercy, *in pro per*, for failure to timely serve pleadings on defendants pursuant to California Rules of Court, Rule 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on March 25, 2024, and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response to the Order to Show Cause.

With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiffs. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal pursuant to Gov't Code Section 68608(b) for Plaintiffs' failure to timely serve Defendants per CRC 3.110(b) and failure to timely prosecute. The hearing on the Order to Show Cause Re: Dismissal is set for **Tuesday, April 1, 2025, at 8:30 a.m. in Department 63.** The clerk is instructed to prepare a separate Order to Show Cause Re: Dismissal. This matter is also calendared on **Tuesday, April 1, 2025, 2025 at 9:00 a.m. in Department 63** for review regarding status of service.

REDDING BUSINESS PARK, LLC VS. AMAZING FINDS, LLC, ET AL.

Case Number: CVCV19-0192492

Tentative Ruling on Motion for Reconsideration and/or Amend Judgment: Plaintiff Redding Business Park, LLC obtained a default judgment in the amount of \$47,073.45 on November 13, 2024. The judgment is comprised of \$28,080.00 in damages, \$16,848.00.00 in attorney's fees, and \$2,145.45 in costs. The Court did not award prejudgment interest based on Plaintiff's failure to accurately calculate interest. Plaintiff seeks reconsideration of this ruling and for prejudgment interest in the amount of \$15,444.00.

Plaintiff did not provide the legal basis for reconsideration in the moving papers. Motions for reconsideration are